



Maritime Labour Notice (MLN) – 015 (a)
Supersedes MLN 015

To: Ship owners, Masters, Operators, Recognised Organisations, and Certifying Authorities

MLC Title 4.1 Medical care on board ship and ashore

This MLN provides guidance on compliance with Gibraltar regulations which give effect to MLC 2006 Title 4.1. Implementation of these guidelines will be taken as evidence of compliance with the Gibraltar regulations. The guidelines do not preclude an organisation from demonstrating an equivalent or higher standard as an “alternative method” of evidence of compliance.

Associated requirements referred to in this notice:

Maritime Labour Convention 2006

Gibraltar Merchant Shipping (Medical Stores) Regulations 2000

Gibraltar Merchant Shipping (Maritime Labour Convention) Regulations 2012. Reg.28

Form RA-09-F033 - Ship Master’s Medical Report Form

Most regulations and notices are available on the Gibraltar website: www.gibraltarship.com

Steve Gomez – Chief Surveyor

For & on behalf of the Maritime Administrator

Issued: 06 December 2024

All notices are available via <https://gibraltarship.com/notices/maritime-labour-notices>

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Provision of Medical Care

Evidence of Compliance

1. The shipowner shall provide medical and essential dental care at no cost to seafarers.
2. Seafarers should be considered to be in need of immediate medical care in cases of, but not limited to:
 - a. any serious injury or disease;
 - b. any injury or disease which might lead to temporary or permanent disability;
 - c. any communicable disease which poses a risk of transmission to other members of the crew;
 - d. any injury involving broken bones, severe bleeding, broken or inflamed teeth or severe burns;
 - e. severe pain which cannot be managed on board ship, taking account of the operational pattern of the ship, the availability of suitable analgesics and the health impacts of taking these for an extended period;
 - f. suicide risk; and
 - g. a tele-medical advisory service recommending treatment ashore.
3. In general, the seafarer should have health care as comparable as possible to that generally available to workers ashore.
4. Only ships with 100 or more persons on board are required to carry a medical doctor. Ships that are capable of reaching medical facilities within eight hours should have at least one designated seafarer with STCW A-VI/4.1 approved medical first-aid training. All other ships should have at least one designated seafarer for medical care approved to STCW A-VI/4.2.
5. Vessels must carry the appropriate radio equipment for the size of ship, and be able to receive medical advice from coast radio stations and shore services where medical advice can be obtained.

(Radio Medical Advice is available to all ships at sea by contacting HM Coastguard. Advice is provided by two UK designated centres at Aberdeen Royal Infirmary and Queen Alexandra Hospital, Portsmouth, but initial contact should be made with the Coastguard. There are other Radio Medical Advice centres around the world. The Captain should contact the nearest one to the ships position which can give him the best advice).
6. Shipowners should provide information on preventative measures such as health promotion and health education programmes to seafarers.
7. The shipowner can refer to information regarding health promotion and education activities which are available through several industry publications.

For example see:

www.seafarershealth.org
www.dft.gov.uk/mca/min37pdf

8. Shipowners should refer to the Gibraltar Merchant Shipping (Medical Stores) Regulations 2000 for guidance on medicines and medical supplies carried onboard and information on checking and securing contents.

Publications

9. The International Medical Guide for Ships and the International Code of Signals should be available to the designated seafarer for medical care or the ship's doctor, as applicable.

10. The shipowner should maintain current copies of the following publications onboard for assistance in developing medical help and evacuation programs:

- a. International Medical Guide for Ships (or the Ship Captain's Medical Guide)
- b. Medical First Aid Guide for Use in Accidents Involving Dangerous Goods
- c. International Code of Signals (Medical Section)

11. The Master's Medical Report (Gibraltar form RA-09-F033) should be available onboard. Note that the information collected on these forms remains confidential and should not be communicated with anyone who is not involved with the medical care of the seafarer.

RA-09-F033 – Ship Master's Medical Report Form

12. The purpose of RA-09-F033 is to capture a sufficiently comprehensive record of every medical case on board and thereafter it shall be safely filed in the ships medical log.

- a). The form records the initial onboard report details on the front page and
- b). continues on the back page with any telemedical details that may have been requested by the ship, (applicable radio logs may be attached as relevant medical records).
- c). It concludes with a report from the examining doctor where the seafarer needs to be seen by a doctor. On ships that carry a doctor this may be an onboard visit but more likely will be a visit to a doctor onshore.
- d). Shipowners may use their own Medical Report form(s) so long as they contain, as a minimum, the information in RA-09-F033.

13. See also MLN 021 which deals with Reporting of Occupational Accidents, Incidents and Diseases

Medical Care Ashore

14. Seafarers have the right to visit a medical doctor or dentist without delay in ports of call where practical. '*Where practical*' relates to the availability of medical facilities and not the convenience of the ship.

15. The shipowner should assist seafarers suffering from disease in gaining admission to medical facilities for care.

Ships calling at Gibraltar

16. The Captain of the Port shall ensure prompt disembarkation of seafarers in need of immediate medical care from ships in its territory and access to medical facilities ashore for the provision of appropriate treatment.

17. Where a seafarer has died during a ship's voyage, the Member in whose territory the death has occurred or, where the death has occurred on the high seas, into whose territorial waters the ship next enters, shall facilitate the repatriation of the body or ashes by the shipowner, in accordance with the wishes of the seafarer or their next of kin, as appropriate.

Medical Assistance to Other Ships and International Cooperation

18. The shipowner should provide guidance for rendering aid to other vessels in distress. Guidance can be obtained from the International Convention on Maritime Search and Rescue, 1979, as amended, and the International Aeronautical and Maritime Search and Rescue (IAMSAR) Manual. These publications, if applicable, should be on board the ship.